

HOUSE No. 1766

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Hunt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to judicial security.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel J. Hunt</i>	<i>13th Suffolk</i>	<i>1/14/2025</i>

HOUSE No. 1766

By Representative Hunt of Boston, a petition (accompanied by bill, House, No. 1766) of Daniel J. Hunt relative to the public posting or displaying of the personal information of certain protected judicial officials and their family members. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to judicial security.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 156 the
2 following chapter:-

3 CHAPTER 221D. MASSACHUSETTS JUDICIAL SECURITY ACT

4 Section 1. Definitions

5 (1) As used in this chapter, the following words shall, unless the context clearly requires
6 otherwise, have the following meanings:

7 “data broker” a commercial entity that collects, assembles, or maintains personal
8 information concerning an individual who is not a customer or an employee of that entity in
9 order to sell the information or provide third party access to the information.

"immediate family" the spouse, child, or parent or any other blood relative who lives in the same residence as a justice or retired justice of the supreme judicial court, appeals court or trial court.

"personal information" the Social Security number, home address, home phone number, mobile phone number, or personal email of, and identifiable to, that individual

“Protected Individual” a justice or retired justice of the supreme judicial court or appeals court, a judge, recall judge or retired judge of the trial court. any active, formerly active, or retired justice of the United States supreme court; judge of the United States court of appeals, judge or magistrate judge of the United States district court, judge of the United States bankruptcy court

Section 2.

(a) No state agency, county agency or municipal agency shall publicly post or display the personal information of any protected individual on the internet without first obtaining the written permission of that individual.

(b) Each protected individual may file a written notice of their status as a protected individual, for themselves and immediate family to any state agency, county agency or municipal agency; and ask each state agency, county agency or municipal agency to mark as confidential that protected individual’s personal information.

(c) Upon receipt of a written request in accordance with this section, the state agency, county agency or municipal agency shall remove the protected individual’s personal information from publicly available content within 72 hours.

31 Section 3.

32 (a) It shall be unlawful for a data broker to sell, license, trade, purchase, or otherwise
33 provide or make available for consideration a protected individual's personal information.

34 (b) No person, business, or association shall publicly post or publicly display the personal
35 information of a protected individual or a protected individual's immediate family on the internet
36 if the protected individual has, either directly or through an agent, made a written request of the
37 data broker, person, business, or association to not disclose said personal information.

38 (c) A data broker, person, business, or association, shall upon receipt of a written request
39 in accordance with this section, remove the personal information in question from the internet
40 within 72 hours.

41 (d) A data broker, person, business, or association shall ensure, after receiving a written
42 request in accordance with this section, that the protected individual's personal information is not
43 made available on any website or subsidiary website controlled by that data broker, person,
44 business, or association.

45 (e) After receiving a protected individual's written request, no data broker, person,
46 business, or association shall transfer the judges' personally identifiable information to any other
47 person, business, or association through any medium.

48 (f) An at-risk individual whose judges' personally identifiable information is made public
49 as a result of a violation of this Act may bring an action seeking injunctive or declaratory relief
50 in any court of competent jurisdiction. If the court grants injunctive or declaratory relief, the

51 person, business, or association responsible for the violation shall be required to pay the at-risk
52 individual's costs and reasonable attorney's fees.

53 Section 4.

54 This Act shall take effect 120 days after the date of enactment of this Act.